

[ENGLISH OFFICIAL VERSION]

FINAL ADMINISTRATIVE FORMAL NOTICE AND HISTORICAL WHITE PAPER ON ELECTION INFORMATION EQUALITY AND STRUCTURAL UNCONSTITUTIONALITY

Title: Ending Electoral Information Martial Law: A Formal Administrative Notice and Historical Manifesto Declaring Total War Against the Structural Unconstitutionality of Political Party Monopoly and Information Censorship

Addressees:

@Central Election Commission (CEC): No. 5, Xuzhou Rd., Zhongzheng Dist., Taipei City 100, Taiwan

@Nantou County Election Commission: No. 660, Zhongxing Rd., Nantou City, Nantou County 540, Taiwan

Copy Recipients (for Notice & Global Record):

@Judicial Yuan and All Levels of Courts, Constitutional Court, Supreme Prosecutor's Office

@Amnesty International

@Human Rights Watch

@Foreign Media Resident Correspondents in Taiwan

@All Citizens of Taiwan and Global Communities Concerned with Democracy and the Rule of Law

Date of Issuance: September 9, 2026

Preamble and Supreme Legal-Constitutional Positioning

To safeguard the core democratic order protected by Article 7 (Principle of Equality) and Article 23 (Principle of Proportionality) of the Constitution of the Republic of China, and to directly enforce the mandatory international human rights benchmarks set forth in Article 25 of the International Covenant on Civil and Political Rights (ICCPR), Hsu Tsuan-Jung, a legally registered candidate for Constituency 1 of Nantou County, hereby issues this formal administrative notice carrying absolute legal binding force and constitutional critique to the supreme state electoral authorities.

This action combines the precision of clinical medical analysis, the raw frontline sweat of grassroots elder care and manual labor, comparative global legal jurisprudence, an officially published monograph (ISBN/CIP), and permanent digital archives (TaiwanBeautyNews.com / GitHub / Notion). It is by no means a formalistic moral appeal, but rather a structural indictment anchored in rigorous administrative law, the constitutional review standards of the Constitutional Court, and the norms of criminal malfeasance. This legal document aims to shatter the structural hegemony of political party monopolies, reclaim a genuine, transparent, and unmanipulated constitutional democracy for all citizens, and leave behind an indelible historical testimony of justice.

Factual and Legal Grounds: Establishing the Unlawful, Unconstitutional, and Criminal Evidence of "Electoral Information Martial Law"

I. Malicious Exploitation of Electoral Laws to Deprive Informational Rights and Substantive Equality, Constituting "Electoral Information Martial Law" in Violation of Constitutional Intent

Current provisions and practical operations under Article 47, Paragraph 9 of the Public Officials Election and Recall Act arbitrarily delay the statutory release of election gazettes and candidate platforms until a mere "two days before the polling day," while local public official campaigns last a mere 10 days. Under conditions of severe informational asymmetry and without adequate time for voters to review the platforms of political parties and independent candidates, all citizens are forced to cast their ballots under severe oppression of information closure and time delays.

Compared to benchmarks in mature global democracies—such as Germany (a statutory 70-day campaign period with household distribution completed at least 21 days prior to voting), the United States, the United Kingdom, France, Japan, and South Korea, which practice early digital publishing and real-time public disclosure—Taiwan's current schedule for transmitting election gazettes and platforms lags severely behind. This institutional delay substantially deprives grassroots laborers and independent candidates—who lack financial conglomerate backing or state political party subsidies—of their constitutional right to fair competition, legally constituting an "Electoral Information Martial Law" that severely violates the right to political participation and the principle of equality under Article 7 of the Constitution.

II. Violation of the Principles of Proportionality, Good Faith, and "Discretion Shrinking to Zero" Under the Administrative Procedure Act

Pursuant to Article 7 (Principle of Proportionality) and Article 8 (Principles of Good Faith and Protection of Legitimate Expectations) of the Administrative Procedure Act, administrative agencies must adopt methods least burdensome to the rights of the people while achieving their goals. When contemporary digital technology and the internet are universally ubiquitous, the authorities were well aware that releasing paper gazettes "just two days before voting" would cause major, irreversible damage to the people's right to know and freedom of choice, yet they chronically failed to execute digital broadcasting and real-time public notification duties. Consequently, their administrative discretion has "shrunk to zero" due to the infringement of fundamental human rights. The agency's inaction directly constitutes illegal dereliction of duty and an undue infringement on the campaign rights of independent candidates.

III. Severe Breach of the Mandatory Binding Force of Article 25 of the International Covenant on Civil and Political Rights (ICCPR)

Taiwan has localized the ICCPR, and its Article 25 explicitly guarantees citizens the right to participate in public affairs and enjoy equal access to information and free voting. The long-term inertia, rigidity, and resistance to reform displayed by election authorities regarding information transmission substantially contravene the mandatory norms of international human rights covenants, reducing Taiwan's democracy to a formalistic facade dominated by privileged monopolies.

Specific Legal Demands, Official Schedule Rebuttal, and Ultimate Ultimatums for State Compensation and Criminal Malfeasance Prosecution

To this end, legally registered candidate Hsu Tsuan-Jung, upholding an absolute faith in constitutional democracy and the rule of law, a profound historical sense of responsibility toward all citizens, and the rigorous academic and legal standards forged through grassroots practice, hereby issues the following uncompromised, mandatory demands to the authorities:

1. Strictly Citing Official Electoral Schedules to Close All Administrative Loopholes:

The Central Election Commission has officially announced: The 2026 local public officials elections completed candidate registration acceptance on September 4, will complete qualification reviews by October 16, will conduct candidate ballot numbering draws on October 23, and will hold polling on November 28, 2026.

However, contrasting this with the official schedule, candidate rosters and paper gazettes are delayed until the eve of the polling day, severely compressing the campaign period. When the state apparatus already possesses mature digital network architecture, the authorities were fully aware that from the completion of the ballot draw on October 23 to the polling day on November 28, there remains a statutory vacancy of over a month (more than five weeks). Yet, they deliberately neglected to utilize this golden window for digital platform broadcasting and information equality remedies, allowing information martial law to continue impairing democracy. This practice of "holding modern digital tools while deliberately forcing citizens to vote under extreme information closure" is no mere administrative delay, but a knowing and deliberate "malfeasance resulting in a democratic disaster."

2.Locking October 23, 2026, Ballot Draw as the Critical Legal Time Anchor to Mandatorily Execute Digital Remedies:

It is earnestly requested and demanded that starting from the statutory time point of the candidate ballot drawing procedure on October 23, the authorities immediately and comprehensively launch "digital broadcasting and mandatory remedial measures," directing executive agencies at all levels to utilize official network platforms, social media, and diverse digital channels to unconditionally and immediately disclose the complete platforms and profiles of all candidates. This will thoroughly break the backward habit of releasing materials just two days prior to voting, ensuring that all citizens and voters possess ample and reasonable time for rational review and deliberation.

3.Reservation of Legal Remedies, State Compensation, and Comprehensive Prosecution of Criminal Malfeasance:

The candidate solemnly emphasizes that this formal administrative notice is by no means a formalistic moral appeal, but an exercise of the constitutional right to defend democracy. Should the authorities ignore this notice and continue to use administrative inertia to cover up electoral inequities, the candidate will pursue a three-pronged legal enforcement action within statutory deadlines:

(1) Filing an Administrative Litigation and Requesting an Injunction (Interim Relief): Utilizing the strongest judicial enforcement power to correct major flaws in election administration.

(2) Requesting Punitive Financial Compensation under the State Compensation Act: Pursuing substantive property and non-property damages against election authorities for rights injuries inflicted upon candidates and citizens via information martial law.

(3) Filing a Criminal Accusation for Official Malfeasance and Profiteering under the Criminal Code: Accusing relevant negligent heads and handling officials of dereliction of duty and profiting political party monopolies, leaving no safe harbor for bureaucratic entities hiding behind administrative immunity.

The candidate vows to make public all illegal and negligent administrative responsibilities to the international community and historical public judgment, thoroughly defending the final baseline of Taiwan's democracy and rule of law, enabling all citizens nationwide to see the truth within 1 second on the eve of the election and cast their sacred votes according to their conscience!

Indicated Signatory:

Legally Registered Candidate for Constituency 1 of Nantou County:

Hsu Tsuan-Jung (許纘融) Cell phone: 0921-821-037

(Signature / Seal)

[Historical Summons: A Solemn Appeal to All Citizens and Non-Partisan Candidates]

The issuance of this white paper and structural panorama is by no means merely for a single council seat in Nantou Constituency 1, but to reclaim the right to know and substantive equality guaranteed by the Constitution for all Taiwanese people.

Herein, legally registered candidate Hsu Tsuan-Jung solemnly appeals:

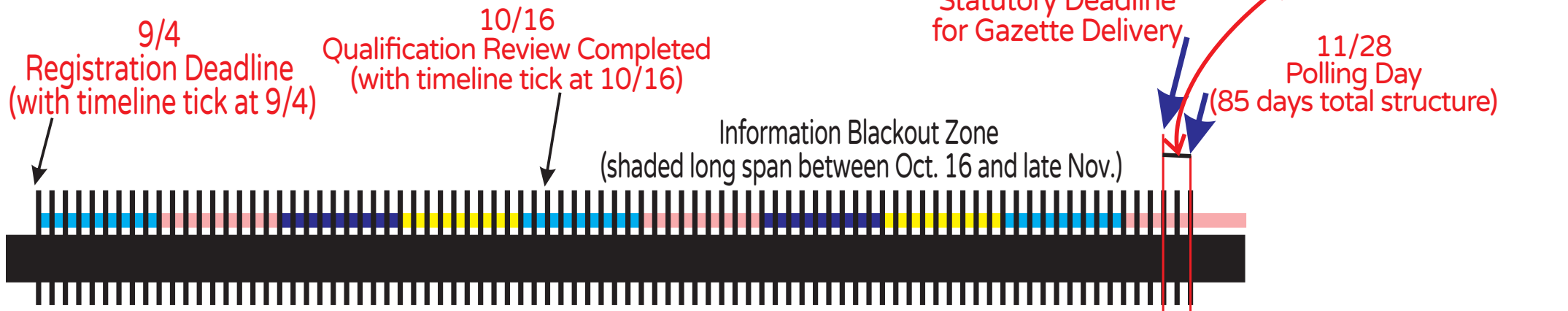
- 1.To National Electoral Authorities: Immediately confront the post-October 23 ballot draw vacancy, comprehensively launch digital platform broadcasting, and end the "Electoral Information Martial Law."
- 2.To All Non-Partisan Candidates: Democracy is not a party monopoly; the right to know is not a privilege of conglomerates. Let us put aside partisan division and demand "real-time transparency of election information," refusing to let voters remain "information aborigines" who receive gazettes on the eve of the election.
- 3.To All Citizens of Taiwan: When facing overwhelming propaganda on the eve of the election, recall this legal battle to shatter the black box. Use your sacred vote to see through the truth in 1 second and forge a new democratic era free from information violence!

Indicated Signatory:

Legally Registered Candidate for Constituency 1 of Nantou County:

Hsu Tsuan-Jung (許纘融)

Date: September 9, 2026



Structural Panorama of "Temporal Violence and Information Censorship Crimes"

Electoral Information Martial Law and Temporal Violence: Structural Crime Panorama of Taiwan's Election System

The Historical Indictment of Structural Unconstitutionality in Taiwan's Democratic Regression

A Total Ultimatum Against the Deliberate, Long-Term Dereliction
of Duty and Deprivation of the Public's Right to Know by Taiwan's Election Authorities

At Least by the October 23 Ballot Draw: Declaring War on Structural Unconstitutionality
and Malicious Information Black Boxes

The statutory requirement to distribute election gazettes 2 days prior to voting
(practically delivered 3 to 2 days before) substantially deprives grassroots
citizens—who lack financial conglomerate backing or state subsidies—and independent
candidates of equal competitive rights. This is not mere administrative inertia,
but "Structural Electoral Information Martial Law."

